

relief from Default. Defendant did not attach a copy of her proposed Answer to her current motion to set aside the default. (Defendant filed a proposed Answer with her original motion to set aside the default, but she did not file one with her current motion.) The motion must be denied for this reason.

However, the courts have found that this requirement is not jurisdictional and substantial compliance may suffice. (*Carmel, Ltd. v. Tavoussi* (2009) 175 Cal. App. 4th 393, 403) In that case, the court found substantial compliance where the proposed Answer was brought to the motion hearing and granted a motion for relief from default.

Order:

The motion to set aside default and default judgment is denied, due to the Defendant's failure to submit a proposed Answer with her motion. In order to preserve her right to attend the hearing on February 6, 2026 and potentially bring a copy of a Proposed Answer, Defendant must email the court at dept32@contracosta.courts.ca.gov by 4:00 pm on February 5, 2026 and indicate her request to argue the case on February 6, 2026. The court reserves the right to reverse this order should Defendant email or bring a copy of a proposed Answer to the hearing on February 6, 2026 at 9:00 am in Department 32.

If no party emails the court to request argument by 4:00 p.m. on February 5, 2026, this tentative ruling becomes the order of the court.

9. 9:00 AM CASE NUMBER: N23-2169
CASE NAME: KARL DEBRO VS. CONTRA COSTA COMMUNITY COLLEGE DISTRICT
***HEARING ON MOTION IN RE: PEREMPTORY WRIT OF MANDATE AND MANDAMUS**
FILED BY: DEBRO, KARL
TENTATIVE RULING:

Continued by the Court to April 10, 2026.

10. 9:00 AM CASE NUMBER: N25-0754
CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: MIERZWA, DAN M.
TENTATIVE RULING

On January 27, 2026 this hearing was continued to March 27, 2026 at 9:00 a.m. in Dept. 32.

11. 9:00 AM CASE NUMBER: N25-0756
CASE NAME: RAINS LUCIA STERN ST. PHALLE & SILVER, PC VS. DAN MIERZWA
HEARING ON DEMURRER TO: PETITIONER'S VERIFIED PETITION FOR WRIT OF MANDATE
FILED BY: MIERZWA, DAN M.
TENTATIVE RULING

On January 27, 2026 this hearing was continued to March 27, 2026 at 9:00 a.m. in Dept. 32.